



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 13, 2024

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202206331 (Incident Date: September 20, 2022) regarding Police Officer John Estling, Tax No. 961744 (DADS No. 2023-29555)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation against Police Officer Estling.

In this matter, it is alleged that Officer Estling failed to provide the complainant with his business card when requested. The CCRB found that the officer did not have any business cards on his person at the time of the incident but that he did verbally provide the complainant with his rank, name, shield number, and command and sufficient time to record the information. Based on these findings, the CCRB substantiated the allegation against Officer Estling and referred back to the Department, for further investigation and possible disciplinary action, an allegation that he failed to carry a sufficient number of business cards on his person.

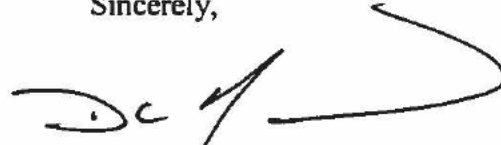
The Police Commissioner finds that the officer's actions were proper under the circumstances. Officer Estling could not have provided what he did not possess. What he did do, give the complainant his identification information, was exactly what was required of him in this situation. However, Officer Estling will be instructed on his obligation to carry a sufficient number of business cards while on duty.

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Therefore, based on the above, and the totality of the circumstances, the Police Commissioner directs that no disciplinary action be taken against Police Officer Estling for the sole substantiated allegation.

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office